

12. 9:00 AM CASE NUMBER: C25-00559
CASE NAME: MARC TRAPANI VS. ANASTACIO CERO
***HEARING ON MOTION IN RE: ENTER JUDGMENT PER CCP 664.6**
FILED BY: TRAPANI, MARC
TENTATIVE RULING:

Summary

Plaintiff Marc Trapani's Motion for Judgment against Defendants Anastacio Cero, et. al., is **denied** without prejudice for lack of jurisdiction. Although Plaintiff's counsel represents that Defendants have been served and have entered into a settlement agreement resolving all claims, which has been allegedly breached, the Register of Actions does not contain proof of service which evidences that any of the Defendants have been served with the initial summons and complaint. As set forth below, the Court lacks personal jurisdiction over Defendants and cannot enter a judgment against them.

Analyses

Defendants to a litigation have a constitutional due process right to notice of the proceeding and an opportunity to be heard. That right was not observed here. While they entered into a settlement agreement, the Court's records do not contain proof of service of summons and complaint on the named Defendants. Thus, the Court does not have jurisdiction over the Defendants.

Without jurisdiction, this Court cannot approve a judgment pursuant to a settlement agreement that binds the parties in this case. Indeed, "A judgment is void if the defendant was never served with the summons and complaint." *Giorgio v. Synergy Management Group, LLC* (2014) 231 Cal.App.4th 241, 246, fn. 6.) The Court does not acquire personal jurisdiction over a defendant until "the time summons is served on him" as provided by statute. (Code Civ. Proc. § 410.50(a).)

Ruling

Plaintiff Marc Trapani's Motion for Judgment against Defendants pursuant to Cal. Code of Civ. Proc. § 664.6 is **denied without prejudice**.

13. 9:00 AM CASE NUMBER: C25-01357
CASE NAME: CITY OF CONCORD VS. COMCAST CABLE COMMUNICATIONS MANAGEMENT, LLC
***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**
FILED RE: RYAN T. DOUGHERTY
FILED BY: COMCAST CABLE COMMUNICATIONS MANAGEMENT, LLC
TENTATIVE RULING:

Summary

Defendant Comcast Cable Communications Management, LLC and Comcast of California IX, Inc. (Collectively "Defendants" or "Comcast") filed a Notice of Hearing and Motion for Ryan T. Dougherty to be admitted as Counsel *Pro Hac Vice*. The Motion is **granted**. No appearance is required at the hearing on January 28, 2026.

Background

On October 3, 2025, Defendants filed Notice of Hearing, through Counsel Paige E. Adaskaveg and Mintz Levin, et. al, on Verified Application for Admission of Ryan T. Dougherty, Esq. to the Bar of this Court *Pro Hac Vice* ("Motion"). The Motion was supported by the Verified Application of Ryan T. Dougherty, Esq., and the Declaration of Paige E. Adaskaveg, Esq. The Proof of Service shows that service was accomplished via U.S. Mail on October, 2025. The Court did not receive timely oppositions from Plaintiff City of Concord.

Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel *Pro Hac Vice* to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the verified application of Ryan Dougherty declares facts under penalty of perjury to support the application under CRC Rule 9.40. Counsel Dougherty is an attorney licensed to practice in the District of Columbia, the state courts of Maryland, Massachusetts, and before the federal courts United Court of Appeal, 1st Circuit, the District of Massachusetts, and the Eastern District of Michigan. He is employed by Mintz Levin's Washington D.C. office. He is not a member of the California State Bar, nor is he a resident of the State of California, nor does he have regular employment or substantial business in California. He represented to the Court that he not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted *Pro Hac Vice*.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

No timely opposition was filed with the Court. Defendant's motion is **granted**. Ryan T. Dougherty, Esq, is admitted to appear as Counsel *Pro Hac Vice* for the duration of this case. Defendants Counsel are ordered to prepare and e-file a conforming order to signed by the Court within five days of the date of this hearing. No appearance is required at the hearing on January 28, 2026.

14. 9:00 AM CASE NUMBER: C25-01474
CASE NAME: FINWISE BANK VS. DEBRA VERNON
HEARING IN RE: APPLICATION FOR WRIT OF POSSESSION
FILED BY: FINWISE BANK

TENTATIVE RULING:

Summary

Plaintiff Finwise Bank's Application for Writ of Possession is **denied** without prejudice. This matter is **stayed** pending arbitration.

Background

On September 3, 2026, Plaintiff Finwise Bank ("Plaintiff") submitted an application for writ of possession seeking to recover the New Steinway model Spirio M Grand piano, serial #625576, with